

**PLACER COUNTY SUPERIOR COURT
TAHOE DIVISION, DEPARTMENT 14
CIVIL LAW AND MOTION TENTATIVE RULINGS
FRIDAY, JULY 17, 2026**

These are the tentative rulings for civil law and motion matters set at **10:00 a.m. on Friday, July 17, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Thursday, July 16, 2026**. Notice of request for oral argument to the court must be made by calling (530) 584-3463. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE EUGENE S. GINI** and if oral argument is requested, it will be heard at 10:00 a.m. in **Department 14**, located at the Tahoe City Courthouse, 2501 No. Lake Boulevard, Tahoe City, California 96145.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. T-CV-0002856 Advocates for Mentally Ill Housing, Inc. v. Baum, Vicki

This tentative ruling is issued by the **Honorable Eugene S. Gini**.

Demurrer to the Complaint

Defendant demurs to the complaint for unlawful detainer, contending it fails to allege facts sufficient to state a cause of action. Plaintiff opposes the demurrer.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant contends the notice to terminate tenancy, attached to the complaint as Exhibit 2, does not comply with the Tenant Protection Act of 2019 (the “TPA”) because the notice does not give defendant any opportunity to cure the lease violation. The TPA requires, amongst other things, when a lease violation is curable, the defendant is entitled to an opportunity to cure the lease violation and to both a notice to cure and, if the violation is not cured, then a separate notice to quit. (Civ. Code, § 1946.2, subd. (c).) By the TPA’s own terms, these additional notice requirements only apply to instances of curable violation by a covenant of the lease agreement within the meaning of Code of Civil Procedure section 1161(3). Here, the complaint alleges defendant was served with a 30-day notice to quit because of an argument tenant had with two of her guests who then left to go to another unit and defendant called the resident in the other unit to go into the parking lot to fight and, when the other tenant came out of her unit to report the incident to staff, defendant “continued to yell threats in an attempt to start a fight and hit” the other tenant.” (Complaint, Exh. 2.) The complaint also alleges the tenancy agreement between the parties included that violent, threatening, or harassing behaviors or language to staff or residents constitutes “grounds for the immediate initiation of termination of the rental agreement pursuant to California Code of Civil Procedure section 1161(3).” (Complaint, Exh. 1.) The complaint therefore alleges that the parties agreed threatening or harassing behaviors or language would constitute an incurable violation. Code of Civil Procedure section 1161(3) contemplates such a situation, including that a violation of a covenant that “cannot afterward be performed,” then no notice to cure is required. Similarly, the TPA’s requirement of a notice to cure and a separate notice to quit applies, by its express terms, to “a curable lease violation.” (Civ. Code, § 1946.2, subd. (c).) Taken as a whole, the complaint sufficiently alleges an unlawful detainer action pursuant to Code of Civil Procedure section 1161(3) where no notice to cure was required because the alleged violation of the agreement was agreed to be “grounds for the immediate initiation of termination of the rental agreement.”

Based on the foregoing, the demurrer is overruled. Defendant shall file her answer by July 22, 2026.
